

PREMIER BUSINESSOWNERS - FOOD SERVICE (AMCO)

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IMPORTANT INSURANCE INFORMATION

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Please read this Notice carefully. No coverage is provided by this notice nor can it be construed to replace any provision of your policy. You should read your policy and review your declarations page for complete information on the coverages you are provided. If there is any conflict between the policy and this notice, the provisions of the policy shall prevail.

CONSUMER COMPLAINTS AND INFORMATION

Thank you for choosing Nationwide® to help you protect what's important to you. We value your business and want to ensure you have the current California service contact information if you need assistance.

What you need to do

Please keep this information with your insurance policy for reference.

IF YOU SHOULD HAVE ANY QUESTIONS OR CONCERNS RELATED TO YOUR INSURANCE POLICY, YOU MAY CONTACT YOUR AGENT OR A COMPANY REPRESENTATIVE. THE CONTACT INFORMATION FOR YOUR AGENT IS LOCATED IN YOUR POLICY DOCUMENTS, AND THE CONTACT INFORMATION FOR A COMPANY REPRESENTATIVE FOLLOWS:

**NATIONWIDE INSURANCE COMPANY
ATTN: CUSTOMER RELATIONS DEPARTMENT
ONE WEST NATIONWIDE BLVD
COLUMBUS OH 43215 -2220
TOLL FREE: 877-669-6877
WEB: WWW.NATIONWIDE.COM**

IF YOUR AGENT OR A COMPANY REPRESENTATIVE IS UNABLE TO RESOLVE YOUR CONCERN, YOU MAY ALSO CONTACT THE CALIFORNIA DEPARTMENT OF INSURANCE, CONSUMER SERVICES DIVISION AT:

**CALIFORNIA DEPARTMENT OF INSURANCE
CONSUMER SERVICES AND MARKET CONDUCT BRANCH
CONSUMER SERVICES DIVISION
300 SOUTH SPRING STREET, SOUTH TOWER
LOS ANGELES, CA 90013
1-800-927-HELP(4357)
1-800-482-4833 (TDD)
WEB: WWW.INSURANCE.CA.GOV**

You can always count on us to be there

We appreciate your business and look forward to continuing to serve you.

For use only in California, New Jersey, North Dakota, Washington

IMPORTANT FLOOD INSURANCE NOTICE

Thank you for the opportunity to provide your important insurance protection. As your insurance provider, we like to keep you informed of important issues that can potentially impact your property assets. This letter is to remind you of the importance of considering flood insurance and the importance of reviewing your policies on a regular basis.

Your Commercial Property (Premier Businessowners and/or Commercial Property) and Farmowners' policy does not cover damage from floods to any property resulting directly or indirectly from "water." Excluded "water" losses include, but are not limited to those caused by flood, surface water, waves, tides, tidal waves, overflow of any body of water, or their spray, all whether driven by wind or not. You will need to read your policy for all of the details about excluded water losses. This is just a summary of the excluded water losses to highlight some important flood-related issues.

In most communities, you can obtain flood insurance through your agent that is backed by the federal government's *National Flood Insurance Program*. In those qualifying communities, you can obtain flood insurance protection for your property regardless of your flood zone or flood risk.

Your agent can assist you in 1) determining if your community participates in the National Flood Insurance Program, 2) assessing your flood risk, and 3) understanding flood policy availability. To learn more about flood insurance and your risk of flooding access the National Flood Insurance Program's consumer website at www.FloodSmart.gov.

As you consider the risk of flooding in your area and consider your options for obtaining valuable protection, consider that:

- All property is in a flood zone, regardless of whether an area has been defined as high risk or low risk.
- Nearly 25% of all flood claims are for properties located in lower-risk flood areas or locations where flooding is not expected.
- Floods can happen anywhere, at any time, causing anguish, destruction, and financial damage.
- Changing weather patterns, as well as residential and business development, may increase your chance of experiencing a flood.
- Flooding can occur as a result of clogged, overloaded, or inadequate storm drains. You don't have to live near a body of water to be flooded.
- Federal disaster assistance is often a loan and must be repaid with interest.
- Your commercial property and/or farmowner policies exclude loss by flooding.

Ask your agent about obtaining flood insurance for commercial property today. Thank you for choosing us to meet your insurance needs. We value your business.

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IMPORTANT INSURANCE INFORMATION

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DATA BREACH & IDENTITY RECOVERY SERVICES

Data Breach Services Information:

Through a partnership with Hartford Steam Boiler, you have access to a data breach risk management portal called the eRiskHub®. The portal is designed to help you understand data information exposures, help you plan and be prepared for a data breach, and establish a response plan to manage the costs and minimize the effects of a data breach.

Key features of the portal include:

- Incident Response Plan Roadmap – suggested steps your business can take following data breach incident. Having an incident response plan prepared in advance of a breach can be useful for defense of potential litigation.
- Online Training Modules – ready-to-use training for your business on privacy best practices and Red Flag Rules.
- Risk Management Tools- assist your business in managing data breach exposures including self-assessments and state breach notification laws.
- eRisk Resources – a directory to quickly find external resources on pre and post-breach disciplines.
- News Center – cyber risk stories, security and compliance blogs, security news, risk management events, and helpful industry links.
- Learning Center – best practices and white papers written by leading authorities.

To access the eRiskHub®portal:

- Enter <https://www.eriskhub.com/nationwide> in your browser.
- Complete the information, including your name and company. Your User ID and Password are case-sensitive.
- Enter your assigned access code: **12116-73**.
- Enter the challenge word on the screen, and click “Submit” and follow the instructions to complete your profile setup.
- You can now login to the portal.

You also have access to a help-line to answer breach related questions. Insureds having questions pertaining to how to prepare for a breach, help in identifying a breach, or other questions pertaining to breach related best practices can call our breach preparedness help-line. Experienced professionals are able to provide insights to help insureds understand the complicated environment pertaining to breaches of personal information. The breach preparedness help-line is 877-800-5028.

In addition, you have the ability to purchase Data Compromise Insurance coverage and CyberOne Insurance coverage.

The Data Compromise coverage covers the costs incurred by an insured to respond to a data breach, including expenses related to forensic information technology review, legal review, notification to affected individuals, services to affected individuals, public relations services. Insureds will also have the ability to include Data Compromise Defense and Liability coverage which covers the liability from a suit brought by an individual affected by the data breach.

CyberOne coverage protects businesses against damage to electronic data and computer systems from a virus or other computer attack. It also protects a business's liability to third parties that may have suffered damage due to security weaknesses in the business's computer system.

Identity Recovery Services Information:

Through a partnership Hartford Steam Boiler, you will have access to a Toll-Free Identity Recovery Help Line designed to provide education about identity theft and identity theft risks. The toll-free Help Line is staffed by experienced identity theft counsellors who can answer questions and provide useful information and resources to identity theft victims. The Identity Recovery Help Line number is 877-800-5028.

In addition, you have the ability to buy Identity Recovery insurance coverage as an included element of Data Compromise coverage or separately, on its own. The Identity Recovery coverage insures against the theft of identities of the insured's key owners, officers, and resident family members. The coverage provides the services of an identity theft case manager and pays for various out-of-pocket expenses due to a covered identity theft, including:

- Legal fees for answer of civil judgments and defense of criminal charges
- Phone, postage, shipping fees
- Notary and filing fees
- Credit bureau reports
- Lost Wages and Child or Elder Care
- Mental Health Counseling costs (Not Available in NY)
- Miscellaneous Expense coverage

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IMPORTANT INSURANCE INFORMATION

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This Notice does not form a part of the insurance contract. No coverage is provided by this Notice, nor can it be construed to replace any provisions of the policy (including its endorsements). If there is any conflict between this Notice and the policy (including its endorsements), the provisions of the policy (including its endorsements) shall prevail.

Carefully read the policy, including all endorsements attached to the policy.

PROTECTIVE SAFEGUARD ENDORSEMENT ADVISORY NOTICE TO POLICYHOLDERS

This Advisory Notice provides information concerning the following protective safeguards endorsements, which apply to the new or renewal policy being issued:

Burglary and Robbery Protective Safeguards – CP 12 11
Burglary and Robbery Protective Safeguards – CP 73 02
Protective Devices Endorsement – IM 7853
Protective Devices or Services Provision - CRA 505
Protective Safeguards - CP 73 01
Protective Safeguards - OP 04 04
Protective Safeguards - PB 04 30
South Dakota Protective Safeguards - CP 04 12
Protective Devices Endorsement - IMA 930

This policy is written with a protective safeguards endorsement. See the policy declarations to determine the specific endorsement that applies to this policy. Note that acceptance of the policy, in the payment of premium, constitutes the insured's understanding and acknowledgement of the risk of loss of insurance at the scheduled building if the protective safeguard is not maintained. The scheduled protective safeguard(s) scheduled endorsement must be:

- In place;
- Operational; and
- Maintained in good working order

at the building shown on the endorsement.

Failure to comply with any of these conditions, may result in loss of insurance coverage.

The endorsement provides explicit instructions to preserve coverage under the policy should it become necessary to suspend or disable the scheduled protective safeguard(s). Please read the endorsement thoroughly to understand and comply with these conditions. Contact your producer for questions or additional information regarding this endorsement.

The condition in this endorsement applies to all coverages provided by the insurance, including (if any) property damage and business income coverages, unless stated otherwise in your policy.

PREMIER BUSINESSOWNERS POLICY

PREMIER FOOD SERVICE

COMMON DECLARATIONS

Policy Number: ACP BPF 7815736170

Named Insured: ASIMO FOOD SERVICE, INC. - DBA
FARMER BOYS - INDIO

Mailing Address: 11499 FOOTHILL BLVD
RANCHO CUCAMONGA, CA 91730-7632

Agency: NEWFRONT INS SERVICES LLC
Address: OMAHA NE 68164-9684

Agency Phone Number: (415)754-3635

Policy Period: Effective From 07-11-23 To 07-11-24
12:01 AM Standard Time at your principal place of business.

Form of your business entity: CORPORATION

Description of your business: FARMER BOYS RESTAURANT

IN RETURN FOR THE PAYMENT OF THE PREMIUM AND SUBJECT TO ALL THE TERMS OF THIS POLICY,
WE AGREE TO PROVIDE THE INSURANCE STATED IN THIS POLICY.

CONTINUATION PROVISION: If we offer to continue your coverage and you or your representative do not accept, this policy will automatically terminate on the expiration date of the current policy period stated above. Failure to pay the required premium when due shall mean that you have not accepted our offer to continue your coverage. This policy will terminate sooner if any portion of the current policy period premium is not paid when due.

RENEWAL POLICY NOTICE: In an effort to keep insurance premiums as low as possible, we have streamlined your renewal policy by not including printed copies of policy forms or endorsements that have not changed from your expiring policies, unless they include variable information that is unique to you. Refer to your prior policies for printed copies of these forms. If you have a need for any form, they are available by request from your agent.

IMPORTANT INFORMATION FOR CALIFORNIA POLICYHOLDERS: Companies writing property and casualty insurance in California are required to participate in the California Insurance Guarantee Association. If a company becomes insolvent, the California Insurance Guarantee Association settles unpaid claims and assesses each insurance company for its fair share. California law requires all companies to surcharge policies to recover these assessments. If your policy is surcharged, "CA Surcharge" with an amount will appear on your premium notice.

TOTAL POLICY PREMIUM \$ 14,341.00

Previous Policy Number			
ACP BPF 7805736170	ENTRY DATE	05-16-23	Countersignature _____ Date _____

These Common Policy Declarations, together with the Common Policy Conditions, Coverage Form Declarations, Coverage Forms and any endorsements issued to form a part thereof, complete the Policy numbered above.

PREMIER BUSINESSOWNERS POLICY

PREMIER FOOD SERVICE

SCHEDULE OF NAMED INSURED

Policy Number: ACP BPF 7815736170

From 07-11-23

Policy Period:
To 07-11-24

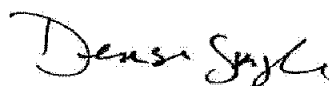
Named Insured:

ASIMO FOOD SERVICE, INC. - DBA

FARMER BOYS - INDIO

AMCO INSURANCE COMPANY

IN WITNESS WHEREOF the Company has caused this policy to be signed by its president and secretary and countersigned on the declarations page by a duly authorized representative of the company.



SECRETARY



PRESIDENT

PREMIER BUSINESSOWNERS POLICY

PREMIER FOOD SERVICE PROPERTY DECLARATIONS

Policy Number: **ACP BPF 7815736170**

Policy Period:
From **07-11-23** To **07-11-24**

Description of Premises Number: **001** Building Number: **001** Construction: **FRAME**
Premises Address **81959 US HIGHWAY 111** **INDIO** **CA** **92201-5418**
Premises ID
Occupancy **OO** Classification: **FAST FOOD - FRANCHISED ONLY - WITHOUT PLAYGROUND - HAMBURGER**

Described as: **FARMER BOYS**

WE PROVIDE INSURANCE ONLY FOR THOSE COVERAGES INDICATED BY A LIMIT OR BY "INCLUDED".

The Property Coverage provided at this premises is subject to a **\$ 1,000** Deductible, unless otherwise stated.

COVERAGES		LIMITS OF INSURANCE
Building - Replacement cost		\$1,509,100
Business Personal Property - Replacement cost		\$384,800
ADDITIONAL COVERAGES - the Coverage Form Includes other Additional Coverages not shown.		
Business Income - ALS - 12 Months - NO Hour Waiting Period - 60 Day Ordinary Payroll Limit		INCLUDED
Extra Expense - Actual Loss Sustained (ALS) - 12 Months - NO Hour Waiting Period		INCLUDED
Equipment Breakdown		INCLUDED
Automatic Increase in Insurance - Building		6%
Automatic Increase in Insurance - Business Personal Property		2.9%
Back Up of Sewer and Drain Water (limit shown per Building, subject to \$25,000 policy aggregate)		
		\$5,000
Appurtenant Structures - 10% of Building Limit of Insurance - maximum \$50,000 any one structure		INCLUDED
Increased Cost of Construction		\$25,000
OPTIONAL INCREASED LIMITS	Included Limit	Additional Limit
Account Receivable	\$25,000	
Valuable Papers and Records (At the Described Premises)	\$25,000	
Forgery and Alteration	\$10,000	
Money and Securities - Inside the Premises	\$10,000	
Outside the Premises (Limited)	\$10,000	
Outdoor Signs	\$2,500	\$7,500
Outdoor Trees, Shrubs, Plants and Lawns	\$10,000	
Business Personal Property Away From Premises	\$15,000	
Business Personal Property Away From Premises - Transit	\$15,000	
Electronic Data	\$10,000	
Interruption of Computer Operations	\$10,000	
Building Property of Others	\$10,000	
OPTIONAL COVERAGES - Other frequently purchased coverage options.		
Employee Dishonesty		NOT PROVIDED
Ordinance or Law - 1 - Loss to Undamaged Portion		NOT PROVIDED
2 - Demolition Cost and Broadened Increased Cost of Construction		NOT PROVIDED
Ordinance or Law Broadened		NOT PROVIDED
Food Service PLUS Endorsement		INCLUDED
Spoilage From Power Outage - \$500 Deductible		\$10,000

PROTECTIVE SAFEGUARDS

This premise has Protective Safeguards identified by symbols below. Insurance for Fire or Burglary and Robbery at this premise will be excluded if you do not notify us immediately if any of these safeguards are impaired. See **PB 04 30** for a description of each symbol. APPLICABLE SYMBOLS: **P-8;**

PREMIER BUSINESSOWNERS POLICY

PREMIER FOOD SERVICE

MORTGAGEE ASSIGNMENT INFORMATION

Policy Number: **ACP BPF 7815736170**

Policy Period:
From **07-11-23** To **07-11-24**

Additional Interest: **L** Interest Number: **1** Loan Number:

Interest: **LOC 1-1 CONTENT**

**INLAND COMMUNITY BANK NA IT'S
SUCCESSORS ASSIGNS & THE U.S. SMALL
3999 INLAND EMPIRE BLVD, ONTARIO, CA, 91764-5084**

Additional Interest: **M** Interest Number: **2** Loan Number:

Interest: **LOC 1-1**

**INLAND COMMUNITY BANK NA IT'S
SUCCESSORS ASSIGNS & THE U.S. SMALL
3999 INLAND EMPIRE BLVD, ONTARIO, CA, 91764-5084**

Additional Interest: **M** Interest Number: **3** Loan Number: **SC-MOK-03-C**

Interest: **LOC 1-1**

BANK OF THE WEST, ISAOA

1977 SATURN ST, MONTEREY PARK, CA, 91755-7418

Additional Interest: **M** Interest Number: **4** Loan Number:

Interest: **LOC 1-1**

BANNER BANK ISAOA

110 S FERRALL ST, SPOKANE, WA, 99202-4800

Additional Interest: Interest Number: Loan Number:

Interest:

Additional Interest: Interest Number: Loan Number:

Interest:

Additional Interest: Interest Number: Loan Number:

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Additional Interest: Interest Number: Loan Number:

Interest:

Additional Interest: Interest Number: Loan Number:

Interest:

Additional Interest: Interest Number: Loan Number:

Interest:

PREMIER BUSINESSOWNERS POLICY

PREMIER FOOD SERVICE

LIABILITY DECLARATIONS

Policy Number: **ACP BPF 7815736170**

Policy Period:
From **07-11-23** To **07-11-24**

LIMITS OF INSURANCE

Each Occurrence Limit of Insurance	Per Occurrence	\$2,000,000
Medical Payments Coverage Sub Limit	Per Person	\$1,000
Tenants Property Damage Legal Liability Sub Limit	Per Covered Loss	\$300,000
Personal and Advertising Injury	Per Person Or Organization	\$2,000,000
Products – Completed Operations Aggregate	All Occurrences	\$4,000,000
General Aggregate (Other than Products – Completed Operations)	All Occurrences	\$4,000,000

AUTOMATIC ADDITIONAL INSURED STATUS

The following persons or organizations are automatically insureds when you and they have agreed in a written contract or agreement that such person or organization be added as an additional insured on your policy.

Co-Owners of Insured Premises
Controlling Interest
Grantor of Franchise or License
Lessors of Leased Equipment
Managers or Lessors of Leased Premises
Mortgagee, Assignee or Receiver
Owners or Other Interest from Whom Land has been Leased
State or Political Subdivisions - Permits Relating to Premises

PROPERTY DAMAGE DEDUCTIBLE

NONE

OPTIONAL COVERAGES

Hired Auto Liability Coverage	Included in Each Occurrence Limit of Insurance
Nonowned Auto Liability Coverage	Included in Each Occurrence Limit of Insurance

The Liability portion of your total policy premium is an advance premium and may be subject to adjustment

PREMIER BUSINESSOWNERS POLICY

PREMIER FOOD SERVICE

FORMS AND ENDORSEMENTS SUMMARY

Policy Period:

Policy Number: ACP BPF 7815736170

From 07-11-23 To 07-11-24

FORM NUMBER	TITLE
LI0021	0101 NUCLEAR ENERGY LIABILITY EXCLUSION
PB0002	1114 PREMIER BUSINESSOWNERS
PB0006	1114 PREMIER BUSINESSOWNERS LIABILITY COVERAGE FORM
PB0009	1114 PREMIER BUSINESSOWNERS COMMON POLICY CONDITIONS
PB0430	0917 PROTECTIVE SAFEGUARDS
PB2998	0908 EXCLUSION - VIOLATION OF CONSUMER PROTEC
PB2999	0215 EXCLUSION - FUNGI OR BACTERIA
PB9004	1220 CALIFORNIA AMENDATORY ENDORSEMENT
PB0404	0101 HIRED AUTO AND NON-OWNED AUTO LIABILITY
PB1203	0101 LOSS PAYABLE PROVISIONS
PB2002	1114 FOOD SERVICE PLUS ENDORSEMENT
PB1504	1114 ACCESS OR DISCLOSURE OF CONFIDENTIAL OR PERSONAL INFORMATION
PB0523	0715 CAP ON LOSSES FROM CERTIFIED ACTS OF TERRORISM

IMPORTANT NOTICES

IN7406	0107 IMPORTANT FLOOD INSURANCE NOTICE
IN7809	1115 DATA BREACH & IDENTITY RECOVERY SERVICES
IN0001	0416 CONSUMER COMPLAINTS AND INFORMATION
IN7854	0717 PROTECTIVE SAFEGUARDS ENDORSEMENT ADVISORY NOTICE TO POLICYH

EFFECTIVE DATE: 12:01 AM Standard Time,
(at your principal place of business)

BUSINESSOWNERS
PB AI 09 (01-01)

ACKNOWLEDGEMENT OF ADDITIONAL INSURED STATUS MORTGAGEE, ASSIGNEE OR RECEIVER

Person or Organization Designated as an Additional Insured:

HAVADJIA HOLDINGS INC
3800 ORANGE ST STE 250
RIVERSIDE CA 925013622

Designated Premises:

81959 US HIGHWAY 111
INDIO CA 922015418

This form has been sent to you to acknowledge your status as an additional insured under our, meaning the issuing Company stated below, insurance policy issued to the Named Insured shown below.

Under our Premier Businessowners Liability Coverage Form, Section II. WHO IS AN INSURED provides as follows:

Any of the following persons or organizations are automatically insureds when you [i.e. the Named Insured stated below] and such person or organization have agreed in a written contract or agreement that such person or organization be added as an additional insured on your policy providing general liability coverage.

Mortgagee, Assignee or Receiver

Any person or organization who has status as mortgagee, assignee or receiver of your property is an additional insured, but only with respect to their liability as mortgagee, assignee or receiver arising out of your ownership, maintenance, or use of such premises, subject to the following additional exclusion:

This insurance, including any duty we have to defend "suits", does not apply to structural alterations, new construction or demolition operations performed by or for such person or organization.

HOWEVER, their status as additional insured under this policy ends when their status as mortgagee, assignee or receiver ends.

The policy language set forth above is subject to all of the terms and conditions of the policy issued to the Named Insured shown below. For your information, our Named Insured, the Policy Number, Policy Term and Limits of Insurance are stated below.

Named Insured **ASIMO FOOD SERVICE, INC. - DBA**

Issuing Company: **AMCO INSURANCE COMPANY**
Policy Number: **ACP BPF 7815736170**
Policy Term: **07-11-23 To 07-11-24**
Limits of Insurance: **Per Occurrence \$2,000,000**
 All Occurrences \$4,000,000

EFFECTIVE DATE: 12:01 AM Standard Time,
(at your principal place of business)

BUSINESSOWNERS
PB AI 09 (01-01)

ACKNOWLEDGEMENT OF ADDITIONAL INSURED STATUS MORTGAGEE, ASSIGNEE OR RECEIVER

Person or Organization Designated as an Additional Insured:

**C & S LEE PROPERTIES, LLC
ATTN: CHULLAM LEE
8792 BELDAY ST
CYPRESS CA 906302206**

Designated Premises:

**81959 US HIGHWAY 111
INDIO CA 922015418**

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(at your principal place of business)

BUSINESSOWNERS
PB AI 09 (01-01)

ACKNOWLEDGEMENT OF ADDITIONAL INSURED STATUS MORTGAGEE, ASSIGNEE OR RECEIVER

Person or Organization Designated as an Additional Insured:

**BANK OF THE WEST, ISAOA
LN# SC-MOK-03-C
1977 SATURN ST
MONTEREY PARK CA 917557418**

Designated Premises:

**81959 US HIGHWAY 111
INDIO CA 922015418**

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This insurance, including any duty we have to defend "suits", does not apply to structural alterations, new construction or demolition operations performed by or for such person or organization.

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EFFECTIVE DATE: 12:01 AM Standard Time,
(at your principal place of business)

BUSINESSOWNERS
PB AI 09 (01-01)

ACKNOWLEDGEMENT OF ADDITIONAL INSURED STATUS MORTGAGEE, ASSIGNEE OR RECEIVER

Person or Organization Designated as an Additional Insured:

BANNER BANK ISAOA

**110 S FERRALL ST
SPOKANE WA 992024800**

Designated Premises:

**81959 US HIGHWAY 111
INDIO CA 922015418**

This form has been sent to you to acknowledge your status as an additional insured under our, meaning the issuing Company stated below, insurance policy issued to the Named Insured shown below.

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Issuing Company: **AMCO INSURANCE COMPANY**

Policy Number: **ACP BPF 7815736170**

Policy Term: **07-11-23 To 07-11-24**

Limits of Insurance: **Per Occurrence \$2,000,000**
All Occurrences \$4,000,000

EFFECTIVE DATE: 12:01 AM Standard Time,
(at your principal place of business)

BUSINESSOWNERS
PB AI 99 (01-01)

ACKNOWLEDGEMENT OF ADDITIONAL INSURED STATUS GRANTOR OF FRANCHISE OR LICENSE

Person or Organization Designated as an Additional Insured:

FARMER BOYS FOOD INC

**3452 UNIVERSITY AVE
RIVERSIDE CA 925013327**

This form has been sent to you to acknowledge your status as an additional insured under our, meaning the issuing Company stated below, insurance policy issued to the Named Insured shown below.

Under our Premier Businessowners Liability Coverage Form, Section II. WHO IS AN INSURED provides as follows:

Any of the following persons or organizations are automatically insureds when you [i.e. the Named Insured stated below] and such person or organization have agreed in a written contract or agreement that such person or organization be added as an additional insured on your policy providing general liability coverage.

Grantor of Franchise or License

Any person or organization that has granted you a franchise or license by written contract or agreement is an additional insured, but only with respect to their liability as the grantor of a franchise or license to you.

HOWEVER, their status as additional insured under this Policy ends when their contract or agreement with you granting the franchise or license ends.

The policy language set forth above is subject to all of the terms and conditions of the policy issued to the Named Insured shown below. For your information, our Named Insured, the Policy Number, Policy Term and Limits of Insurance are stated below.

Named Insured **ASIMO FOOD SERVICE, INC. - DBA**

Issuing Company: **AMCO INSURANCE COMPANY**

Policy Number: **ACP BPF 7815736170**

Policy Term: **07-11-23 To 07-11-24**

Limits of Insurance:	Per Occurrence	\$2,000,000
	All Occurrences	\$4,000,000

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

PROTECTIVE SAFEGUARDS

This endorsement modifies insurance provided under the following:

PREMIER BUSINESSOWNERS PROPERTY COVERAGE FORM

NOTICE

YOU RISK THE LOSS OF CERTAIN INSURANCE COVERAGE AT PREMISES DESIGNATED IN THE DECLARATIONS IF YOU FAIL TO MAINTAIN ANY OF THE APPLICABLE PROTECTIVE SAFEGUARDS, LISTED BY SYMBOL IN THE DECLARATIONS FOR EACH PREMISES.

TO AVOID POTENTIAL LOSS OF COVERAGE YOU MUST REPORT ANY PROTECTIVE SAFEGUARD SUSPENSION OR DISABLEMENT BY CALLING 1-866-322-3214

Your acceptance of this policy in the payment of premium when due constitutes your understanding and acknowledgement that you risk the loss of certain insurance at the premises designated if you fail to maintain the protective safeguard and your acceptance and agreement with the terms of this endorsement.

SCHEDULE

Prem. / Bldg. No. Description of P-9 Protective Safeguard:

A. **CONDITION.** As a condition of this insurance, you are required to maintain the applicable protective devices or services for fire, denoted by symbols P-1, P-2, P-3, P-4, P-5, P-8, or P-9; or for burglary and robbery, denoted by symbols P-6 or P-7), as designated at each premises by symbol in the Declarations.

B. **EXCLUSIONS.** Under Section B. EXCLUSIONS, the following exclusions are added:

1. **FIRE PROTECTIVE SAFEGUARDS**

We will not pay for loss or damages caused by or resulting from fire if, prior to the fire, you:

- a. Knew or should have known of any suspension or impairment in any protective safeguard as designated at each premises by symbol in the Declarations and failed to notify us of that fact; or
- b. Failed to maintain any protective safeguard as designated at each premises by symbol in the Declarations and over which you have control, in complete working order; or

c. Add or modify any cooking equipment and operate it prior to adding or extending any Fire Suppression System that is required by code to protect it.

If part of an Automatic Sprinkler System is shut off due to breakage, leakage, freezing conditions or opening of sprinkler heads, notification to us will not be necessary if you can restore full protection within 48 hours.

2. **BURGLARY AND ROBBERY PROTECTIVE SAFEGUARDS**

We will not pay for loss or damage caused by or resulting from breaking-in or theft if, prior to the breaking-in or theft, you:

- a. Knew or should have known of any suspension or impairment in any protective safeguard designated at each premises by symbol in the Declarations and failed to notify us of that fact; or
- b. Failed to maintain any protective safeguard designated at each premises by symbol in the Declarations and over which you had control, in complete working order.

C. **PROTECTIVE SAFEGUARD SYMBOLS.** The protective safeguards to which this endorsement applies are identified in the Declarations by the following symbols:

"P-1" Automatic Sprinkler System including related supervisory services. Automatic Sprinkler System means:

- a. Any automatic fire protective or extinguishing system, including connected:
 - 1) Sprinklers and discharge nozzles;
 - 2) Ducts, pipes, valves and fittings;
 - 3) Tanks, their component parts and supports; and
 - 4) Pumps and private fire protection mains.
- b. When supplied from an automatic fire protective system:
 - 1) Nonautomatic fire protective systems; and
 - 2) Hydrants, standpipes and outlets.

"P-2" Automatic Fire Alarm, protecting the entire building, that is:

- a. Connected to a central station; or
- b. Reporting to a public or private fire alarm station.

"P-3" Security Service, with a recording system or watch clock, making hourly rounds covering the entire building, when the premises are not in actual operation.

"P-4" Service Contract with a privately owned fire department providing fire protection service to the described premises.

"P-5" Watchman Service based on contract with a privately owned security company providing premises protection services to the described premises.

"P-6" Local Burglar Alarm protecting the entire building which in the event of an unauthorized or attempted entry at the described premises, triggers a loud sounding gong or siren, or a visual device, on the outside of the building.

"P-7" Central Station Burglar Alarm protecting the entire building which, in the event of an unauthorized or attempted entry at the described premises, will automatically transmit an alarm signal to an outside Central Station or police station.

"P-8" Fire Suppression System, including related supervisory services. Fire Suppression System means any automatic fire protective or extinguishing system designed to protect cooking equipment (i.e. cooking surfaces, deep fat fryers, grease ducts and hoods) including connected:

- a. Sprinklers and discharge nozzles;
- b. Ducts, pipes, valves and fittings; and
- c. Tanks, their component parts and supports.

"P-9" The protective system described in the Schedule of this endorsement.

All terms and conditions of this policy apply unless modified by this endorsement.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

FOOD SERVICE PLUS ENDORSEMENT

This endorsement modifies insurance provided under the following:

PREMIER BUSINESSOWNERS PROPERTY COVERAGE FORM

SCHEDULE

Coverage Description	Limit of Insurance	Deductible
Credit Card Forgery	\$5,000	\$500
Credit Card Slip Theft, Disappearance or Destruction	\$5,000	\$500
Automatic Extinguishing System Protecting Cooking Equipment		
Recharge Expenses	\$5,000	\$500
Clean-up Expenses (Accidental Discharge)	\$5,000	\$500
Loss of Income from Discharge	\$5,000	\$500
Food Contamination – Loss of Income	Per Described Premises \$10,000 *	24 hour wait
	Annual Policy Aggregate \$50,000 *	
– Restoration Expenses	\$10,000	\$500
– Additional Advertising Expense	\$5,000	\$500
– Inoculation Expense Reimbursement	\$5,000	\$500
Spoilage from Power Outage	\$10,000 *	\$500

* If a higher limit was purchased for Food Contamination – Loss of Income or Spoilage from Power Outage, the limit for such coverage would be shown in the Declarations – however the Deductible remains unchanged.

A. OPERATION OF THIS ENDORSEMENT

This Food Service PLUS Endorsement provides the coverage described herein only at your covered restaurant premises. Restaurant includes, but is not limited to, the following styles of service under which you prepare and serve food to the public: fine dining, family, buffet, fast food, pizza parlor, bagel shop, deli, sandwich shop, micro brewery or ice cream shop.

B. The following is added to the PROPERTY COVERAGE FORM:

1. Under Section A. COVERAGES, the following is added to 5. ADDITIONAL COVERAGES:

a. Credit Card Forgery

- (1) We will pay for loss involving written instruments required in conjunction with your customers' credit, debit or charge card resulting directly from forgery or alteration of such written instruments by your customers.

(2) The following exclusion is added:

We will not pay for loss arising from any credit, debit or charge card transaction if you have not complied fully with the provisions, conditions or other terms of the card issuer.

(3) In Section A. COVERAGES, under 2. PROPERTY NOT COVERED, item b. does not apply to this Credit Card Forgery Additional Coverage.

(4) We will not pay for loss or damage in any one occurrence until the amount of loss or damage exceeds the Deductible shown in the Schedule of this endorsement. We will then pay the amount of loss or damage in excess of the Deductible up to the applicable Limit of Insurance shown in the Schedule of this endorsement.

(5) All loss caused by any person or in which that person is involved, whether the loss involves one or more instruments, is considered one occurrence.

b. Credit Card Slip Theft, Disappearance or Destruction

- (1) We will pay for loss of written instruments required in conjunction with any credit, debit, or charge card at the described premises resulting directly from theft meaning any act of stealing, disappearance or destruction.
- (2) In addition to the LIMITATIONS and EXCLUSIONS applicable to property coverage, we will not pay for loss:
 - (a) Resulting from accounting or arithmetical errors or omissions; or
 - (b) Due to the giving or surrendering of property in any exchange or purchase.
- (3) In Section A. COVERAGES, under 2. PROPERTY NOT COVERED, item b. does not apply to this Credit Card Slip Theft, Disappearance or Destruction Additional Coverage.
- (4) We will not pay for loss or damage in any one occurrence until the amount of loss or damage exceeds the Deductible shown in the Schedule of this endorsement. We will then pay the amount of loss or damage in excess of the Deductible up to the applicable Limit of Insurance shown in the Schedule of this endorsement.
- (5) You must keep records of all written instruments so we can verify the amount of any loss or damage.
- (6) All loss:
 - (a) Caused by one or more persons; or
 - (b) Involving a single act or series of related acts;
 is considered one occurrence.

c. Automatic Extinguishing System Protecting Cooking Equipment

(1) Recharge Expenses

We will pay your necessary expenses to recharge an automatic extinguishing system that protects cooking equipment when discharged as designed or if discharged accidentally.

(2) Clean up Expenses

We will pay your necessary expenses to clean up a described premises after an accidental discharge of an automatic extinguishing system that protects cooking equipment. The cleanup expenses must relate directly to such discharge.

(3) Lost Income from Discharge

We will also pay for actual loss of Business Income you sustain due to a suspension of your normal business "operations" during the period of time normally required to clean up and recharge your automatic extinguishing system as a result of its accidental discharge at the described premises.

We will not pay for loss or damage in any one occurrence separately for each of these Automatic Extinguishing System Protecting Cooking Equipment Additional Coverages until the amount of loss or damage exceeds the applicable Deductible shown in the Schedule of this endorsement. We will then pay the amount of loss or damage in excess of the Deductible up to the applicable Limit of Insurance shown in the Schedule of this endorsement for that coverage.

d. Food Contamination

- (1) **Loss of Income.** If your covered restaurant premises are affected as a direct result of an "announcement" of "food contamination", we will pay the loss of "business income" you sustain due to the necessary suspension of your "operations". This coverage will begin 24 hours after the date of the "announcement" and ends on the date when "business income" is restored to 95% of the level of the corresponding period in the year prior to the "announcement", in any event not to exceed 12 months.

The most we will pay for your loss of "business income" is the Per Described Premises Limit of Insurance shown in the Schedule of this endorsement, subject to the Annual Policy Aggregate shown in the Schedule of this endorsement.

HOWEVER, if a limit of insurance is shown at a premises described in the Property Declarations for Food Contamination – Loss of Income, that limit replaces the Food Contamination – Loss of Income limit of insurance shown in the Schedule of this endorsement for that described premises.

- (2) If one of your covered restaurant premises is closed by the Board of Health or any other governmental authority having jurisdiction as a result of the discovery or suspicion of "food contamination", for that described premises, we will:
- (a) **Restoration Expenses**
- (i) Pay your expense to clean your equipment as required by the Board of Health or any other governmental authority;
 - (ii) Pay your cost to replace the food which is, or is suspected to be, contaminated;
 - (iii) Pay your expense to provide necessary medical tests for your exposed employees (including temporary or leased employees) and inoculations for your infected employees (also including temporary or leased employees) who are potentially infected by the "food contamination".
However, we will not pay for any expense that is otherwise covered under your Workers' Compensation Policy;
- (b) **Additional Advertising Expenses.** Pay your additional advertising expenses you incur to restore your reputation.
- (c) **Inoculation Expense Reimbursement.** Reimburse your reasonable expenses incurred for inoculation of your restaurant patrons by a licensed medical professional because of "food contamination" alleged by such patrons to have been transmitted or caused by ingestion of your food.

HOWEVER, this coverage does not apply to you, your employees (including temporary or leased employees) or, unless they are an affected patron, members of either's household.

- (d) **Limits and Deductibles.** Separately as regards to paragraphs (a), (b) and (c) and described premises, we will not pay for loss or damage until the amount of loss or damage exceeds the Deductible shown in the Schedule of this endorsement. We will then pay the amount of loss or damage in excess of each Deductible up to the Limit of Insurance shown in the Schedule of this endorsement.
- (3) We will not pay any fines or penalties levied against you by the Board of Health or any other governmental authority having jurisdiction as a result of the discovery or suspicion of "food contamination" at a described premises.
- (4) **Additional Definitions.** As used in this endorsement:
- (a) **"Announcement"** means a declaration by a Board of Health or any other governmental authority having jurisdiction, or a publication or broadcast by the media, of the discovery or suspicion of "food contamination" at a described premises or at a location of the same type, trade name and operation. Any and all "announcements" concerning the same event or a series of related events, regardless of the number of locations or individuals affected, shall be considered one "announcement". Any such "announcement" must occur during the policy period.
 - (b) **"Food contamination"** means an outbreak of food poisoning or food related illness of one or more persons arising out of:
 - (i) Tainted food you distributed or purchased;

- (ii) Food which has been improperly processed, stored, handled or prepared in the course of your business operations; or
- (iii) Food which has been contaminated by virus or bacteria transmitted through one or more employees, including temporary or leased employees.

e. **Spoilage from Power Outage**

- (1) We will pay for loss of or damage to "perishable stock" at a premises described in the Declarations, caused by "power outage" if the "perishable stock" is:
- (a) Owned by you and used in your business; or
 - (b) Owned by others and in your care, custody or control, however, such property is not covered for more than the amount for which you are legally liable, plus the cost of labor, materials or services furnished or arranged by you on that property.

HOWEVER, "perishable stock" does not include property located:

- (i) On buildings; or
- (ii) In the open.

We will not pay for loss or damage in any one occurrence until the amount of loss or damage exceeds the Deductible shown in the Schedule of this endorsement. We will then pay the amount of loss or damage in excess of the Deductible up to the applicable Limit of Insurance shown in the Schedule of this endorsement.

HOWEVER, if a limit of insurance is shown at a premises described in the Property Declarations for Spoilage From Power Outage, that limit replaces the Spoilage From Power Outage limit of insurance shown in the Schedule of this endorsement.

- (2) As used in this Spoilage from Power Outage Additional Coverage:
- (a) **"Perishable Stock"** means property:

- (i) Maintained under controlled temperature or humidity conditions for preservation; and
- (ii) Susceptible to loss or damage if the controlled temperature or humidity conditions change.

(b) **"Power Outage"** means change in the temperature or humidity resulting from complete or partial interruption of electrical power, either on or off the premises described, due to conditions beyond your control.

HOWEVER, "power outage" does not include interruption of electrical power caused by or resulting from an "accident" to "covered equipment" under the Equipment Breakdown Additional Coverage.

- (3) The following additional exclusions apply to this Spoilage from Power Outage Additional Coverage:
- We will not pay for loss or damage caused by or resulting from:
- (a) The disconnection of any refrigerating, cooling or humidity control system from the source of power.
 - (b) The deactivation of electrical power caused by the manipulation of any switch or other device used to control the flow of electrical power or current.
 - (c) The inability of an electrical utility company or other power source to provide sufficient power due to:
 - (i) Lack of fuel; or
 - (ii) Governmental order.
 - (d) The inability of a power source at the described premises to provide sufficient power due to lack of generating capacity to meet demand.
- (4) The coverage provided by this Spoilage from Power Outage Additional Coverage is excess over any other valid and collectible insurance.

All terms and conditions of this policy apply unless modified by this endorsement.

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